

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: October 13, 2023

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER DENYING MOTION FOR STATUS CONFERENCE

On October 12, 2023, Complainant Samsung Electronics America, Inc. filed a motion seeking a status conference to discuss alleged deficiencies in Respondent SM Line Corporation's motion for leave to file a third-party complaint. These deficiencies include failure to allege a Shipping Act violation in accordance with 46 C.F.R. § 502.62(b)(4), failure to file a lodged third-party complaint with the motion for leave, and failure to comply with the meet-and-confer requirement of 46 C.F.R. § 502.71.

These issues may be addressed in Complainant's opposition to the motion for leave to file a third-party complaint. The presiding officer anticipates being able to assess Respondent's compliance with the Commission's rules without a preliminary discussion. If oral argument proves necessary after the opposition is filed, the presiding officer will set a status conference at that time.

And with respect to the meet-and-confer requirement, the presiding officer notes that the instant non-dispositive motion does not state what attempt was made to confer with Respondent or whether the motion is opposed. The parties are reminded that Rule 71 applies to all non-dispositive motions.

Accordingly, Complainant's Motion for Status Conference on SM Line Corporation's Motion for Leave to File Third Party Complaint is **DENIED**. This denial is without prejudice to Complainant requesting oral argument in its opposition to the motion.

**Alex Michael
Chintella**

Alex M. Chintella
Administrative Law Judge

Digitally signed by Alex
Michael Chintella
Date: 2023.10.13 09:47:55
-04'00'